IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
SPECIAL BENCH
COURT – 1

ITEM No.136-C.P.(CAA)/47(AHM)2022
in C.A.(CAA)/39(AHM)2022

Proceedings under Section 230-232

IN THE MATTER OF:
Power Build Pvt Ltd **.....Applicant**

Order delivered on: 25/04/2023

Coram:
Mr.Ashok Kumar Bhardwaj, Hon'ble Member(J)
Mr.Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:
For the Applicant : Mr. Ravi Pahwa, Advocate
For the Respondent : Mr. Liladhar Sharma Assistant Director for RD NWR

ORDER

We heard Learned Counsel for the Applicant to some length. During the course of the hearing, we found that the application has been preferred under Section 230-232 of the Companies Act, 2013. As can be seen from the act, the procedure of merger or amalgamation of company with foreign company has been envisaged and provided in Section 234 of the Companies Act,2013 and not in Section 230-232 of the same. At the request made by Learned Counsel for the applicant, hearing in the captioned petition is deferred to enable him to study the relevant procedure.

List on 26.04.2023.

-SD-
KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-
ASHOK KUMAR BHARDWAJ
MEMBER (JUDICIAL)

Rajeev